

26STCP01981 26STCP01981

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 26STCP01981 Hearing Date: September 9, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

Boca reserve group, llc

;

Petitioner,

and

galilea mejia

;

Real Party in Interest.

Case

No.:

26STCP01981

Hearing

Date:

September
9, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

AMENDED PETITION FOR APPROVAL FOR TRANSFER
OF PAYMENT RIGHTS

MOVING PARTY: Petitioner Boca Reserve Group,
LLC

RESPONDING PARTY: Unopposed

Amended Petition for Approval for Transfer of Payment Rights

The court
considered the Amended Petition and the proof of service filed on August 14,
2026, and the notice of errata to amended petition and the declaration of
counsel filed on August 19, 2026.

No opposition has
been received.

DISCUSSION

Claimant or Payee Galilea Mejia ("Mejia") previously settled a tort
claim for damages. (First Amended Petition
("FAP"), ¶¶ 3-4.) Mejia has agreed to
sell, and petitioner Boca Reserve Group, LLC ("Petitioner") has agreed to
purchase, 1 annual payment in the amount of \$10,000.00 due on June 6, 2027; 1
lump sum payment in the amount of \$20,000.00 due on June 6, 2031; and 1 lump
sum payment in the amount of \$39,110.00 due on June 6, 2036 for \$20,246.69. (FAP, ¶ 7 and Ex. A, Transfer Agreement,
Schedule A Terms Rider.)

Petitioner now seeks court approval of the transfer agreement pursuant to Insurance Code section 10134 et seq.

LEGAL STANDARD

“A direct or indirect transfer of structured settlement payment rights is not effective and a structured settlement obligor or annuity issuer is not required to make any payment directly or indirectly to any transferee of structured settlement payment rights” unless the court approves the transfer in advance. (Ins. Code, § 10139.5, subd. (a).) To approve the settlement, the court must make express written findings that:

The transfer is in the best interest of the payee, taking into account the welfare and support of the payee’s dependents.

The payee has been advised in writing by the transferee to seek independent professional advice regarding the transfer and has either received that advice or knowingly waived, in writing, the opportunity to receive the advice.

The transferee has complied with the notification requirements pursuant to paragraph (2) of subdivision (f), the transferee has provided the payee with a disclosure form that complies with Section 10136, and the transfer agreement complies with Sections 10136 and 10138.

The transfer does not contravene any applicable statute or the order of any court or other government authority.

The payee understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Section 10136.

The payee understands and does not wish to exercise the payee’s right to cancel the transfer agreement.

(Ins.

Code, § 10139.5, subd. (a)(1)-(6).)zzzzz

“When determining whether the proposed transfer should be approved, including whether the transfer is fair, reasonable, and in the payee’s best interest, taking into account the welfare and support of the payee’s dependents, the court shall consider the totality of the circumstances,” including the 15 circumstances set forth in Insurance Code § 10139.5, subdivision (b)(1)-(15).zzzzz

DISCUSSION

Based on Petitioner’s FAP, the documents attached to the FAP, and the declaration of Mejia, the court finds and orders as follows.

First, the court finds that the transfer is in the best interest of Mejia, taking into account that he does not have any dependents. (Ins. Code, § 10139.5, subd. (a)(1); Mejia Decl., ¶¶ 4, 8.) If approved, Mejia will use the funds to pay off his vehicle, a 2024 Honda Civic that he owes approximately \$15,000.00 on. (Mejia Decl., ¶ 11.) Mejia states that he fell behind on the monthly \$500.00 payments and owes \$2,550.00 in back payments, so paying off the car in full will allow him to live more comfortably every month. (Mejia Decl., ¶ 11.) Mejia also states that he would like to pay his car insurance in full for a year which will save him \$350.00 per month. (Mejia Decl., ¶ 11.) Together, both of these items will free up over \$850 per month. (Mejia Decl., ¶ 11.)

Second, the court finds that Mejia has been advised in writing by Petitioner to seek independent professional advice and has knowingly waived, in writing, the opportunity to receive the advice. (Ins. Code, § 10139.5, subd. (a)(2); Mejia Decl., ¶ 12; FAP, Ex. E.) Petitioner has submitted a form entitled “California Statement of Professional Representation” which (1) states that Mejia has “been advised by [Petitioner] that [he] should obtain independent professional representation concerning the legal, tax, and/or financial implications of this transaction. [He] fully understand[s] the purchase agreement and the effects of the transaction and [he does] not wish to seek out such independent professional representation” and (2) was electronically signed by Mejia on May 16, 2026. (FAP, Ex. E.) Further, the California

Disclosure Statement, which is signed by Mejia, states that the “[he] should get independent professional advice about whether selling [his] structured settlement payments is a good idea for [him and his] dependents. . . . [he is] advised to seek independent legal or financial advice regarding the transaction and, under the law, the cost of that advice, up to one thousand five hundred dollars (\$1,500) will be paid by the transferee [and he] should get independent professional advice from an accountant or lawyer experienced in tax matters about any income tax consequences from selling [his] structured settlement payments.” (FAP, Ex. B.)

Third, the court finds that Petitioner has shown that it has complied with the notification requirements pursuant to paragraph (2) of subdivision (f). (Ins. Code, § 10139.5, subd. (a)(3).)

Insurance Code section 10139.5, subdivision (f)(2) requires Petitioner to file and serve, not less than 20 days before the hearing on a petition for approval of a transfer of payment rights, a notice of the proposed transfer and the petition for its authorization, a copy of the proposed transfer agreement, a listing of each of the payee’s dependents, disclosures as required by section 10136, and, if available, copies of the annuity contract, any qualified assignment agreement, and the underlying structured settlement agreement. It also requires that Petitioner provide notice to the payee’s attorney of record at the time the structured settlement was created, if the payee entered into the structured settlement within five years prior to the date of the transfer agreement.

On August 14, 2026, Petitioner filed the FAP and a proof of service by mail showing Petitioner served Mejia, the annuity issuer, and the annuity obligor. (FAP, pp. 50-51 [proof of service of First Amended Petition].)

Thus, Petitioner has served the interested parties with the current petition, current transfer agreement, the annuity contract, and the disclosure statements. (Pet. Exs. A-E.)

Further, on June 4, 2026, Petitioner served on Mejia, the annuity issuer, and the annuity obligor, the notice of advancement of hearing on the FAP in which Petitioner advised the parties that the hearing on this motion was advanced to September 9, 2026. (June 4, 2026 Not. of Advancement of Hearing; Aug. 14, 2026 Amended Proof of Service.)

Thus, the court finds that Petitioner has given notice of the hearing

date on the interested parties.

Because Mejia is entering into this transfer agreement more than five years from the date of settlement since the minor's compromise petition was approved by the court in January 24, 2012, it is not necessary for Petitioner to serve Mejia's settlement attorney with notice pursuant to Insurance Code section 10139.5, subdivision (f)(2)(L).

(FAP, Ex. D.) The court further finds that Petitioner has provided Mejia with a disclosure form that complies with Section 10136, and that the transfer agreement complies with Sections 10136 and 10138. (Ins. Code, §§ 10139.5, subd. (a)(3), 10136, 10138; FAP Ex. A, Transfer Agreement, Ex. B, California Disclosure Statement.)

Fourth, the court finds that the transfer agreement does not contravene any applicable statute or the order of any court or other government authority. (Ins. Code, § 10139.5, subd. (a)(4); FAP. Ex. A, Transfer Agreement.)

Fifth, the court finds that Mejia understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Section 10136. (Ins. Code, § 10139.5, subd. (a)(5); Mejia Decl., ¶ 13.)

Sixth, the court finds that Mejia understands and does not wish to exercise his right to cancel the transfer agreement. (Ins. Code, § 10139.5, subd. (a)(6); Mejia Decl., ¶ 13.)

Based on the findings set forth above, and after considering the circumstances set forth in Insurance Code section 10139.5, subdivisions (b)(1)-(b)(15) and Mejia's declaration, the court determines that the proposed transfer of the structured settlement payment rights should be approved and that the transfer is fair, reasonable, and in the payee's best interest. The court therefore grants Petitioner's First Amended Petition.

ORDER

The court grants petitioner Boca Reserve Group, LLC's amended petition for approval for transfer of payment rights.

The court orders that the transfer of structured settlement payment rights set forth in the "Transfer Agreement," attached as Exhibit A to petitioner Boca Reserve Group, LLC's First Amended Petition filed in this action on August 14, 2026, is approved.

This order shall constitute a final "Qualified Order" pursuant to 26 U.S.C. section 5891.

The court orders petitioner Boca Reserve Group, LLC to give notice of this ruling to all interested parties.

IT IS SO ORDERED.

DATED: September 9, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court